

Declaration of Covenants and Restrictions for Avonlea

* This is merely a convenient, short-list of important Covenants and Deed Restrictions for consideration by potential buyers. The full set of Covenants and Deed Restrictions, plus any Amendments, shall be made available upon request and it is incumbent upon the buyer to read and adhere to such Covenants and Deed Restrictions.

**Any variances from these Covenants and Deed Restrictions must be submitted to and approved by the Avonlea Architectural Review Board (ARB) prior to any work being started. The ARB has 60 days to approve or reject the plans submitted for review.

Hamlet:

The Avonlea Property has been developed as a "Hamlet" under the County's Comprehensive Plan and Land Development Regulations. Under such provisions:

- a. No more than 40% of the gross land area of each hamlet may be developed; and
- b. At least 60% of the gross land area of each hamlet must be maintained as "permanent open space" for various purposes including agricultural use.

The Plat depicts, on each Lot, the portion of the Lot that may be developed under such provisions. No improvement on any Lot may be constructed contrary to the hamlet provisions of the County's Comprehensive Plan or Land Development Regulations.

Residential and Agricultural Use Only. No Lot shall be used for any purpose except for residential or agricultural purposes. All commercial uses are prohibited other than the commercial breeding and raising horses and haying. No Owner of a Lot may have more than one horse per two acres of land owned. Further, regardless of Lot sizes, no more than two horses may be located on any single Lot. Offspring of existing horses shall not count against the maximum number of horses permitted hereunder until they reach one (1) year of age. Commercial or noncommercial breeding or raising of dogs, cattle, goats, poultry, rabbits, or dairy animals is not permitted.

Dwelling Unit:

Generally:

- a. All Dwelling Units on the Lot must be of conventional construction, and built on site.
- b. Mobile homes, modular homes, or homes moved from any other location are prohibited.
- c. Any Dwelling Unit erected on a Lot shall contain at least 2,300 square feet of living space. Living space shall mean heated and cooled space under roof exclusive of garages, whether attached or detached, heated or cooled, and

exclusive of porches, decks, pools, breezeways, basements, attics, and accessory structures. In computing living space, the square footage of any detached structure shall not be included.

Roofing: The main roof shall have not less than a 6/12 pitch and the fascia shall have a minimum width of 6 inches.

All roofs shall be covered with architectural shingles, tile roofing materials or metal shingles.

All roof venting shall be on the rear of the main ridge of the roof.

Height of Structures: No Dwelling Unit may exceed two stories in height.

Exterior Wall Height: The height for all exterior walls height shall be no less than Nine (9) feet, four (4) inches.

Garages: Each Dwelling Unit shall have an attached or detached garage designed for storage of at least two (2) automobiles. In order to maintain a harmonious appearance, garage doors on any Dwelling Unit shall face away from the side or rear of the Dwelling Unit and may NOT face toward the street or a public or private right-of-way. No on-street parking is permitted. Garages must be maintained operational for the storage of automobiles, boats, or other motor vehicles. Garage doors shall be opaque.

Stucco Exterior: No exterior surfaces composed of stucco that simulates stone or brick shall be allowed.

Exterior Paint: No paint may be used on the exterior of any Dwelling Unit in a color other than the color of exterior paint used in the original construction of the Dwelling Unit, without the prior written consent of the ARB.

Allowable Trim and Decoration: No Owner or tenant of an Owner shall install shutters, awnings, or other decorative exterior trim, except small exterior decorations such as address plates and name plates, which shall not exceed the sign limitations set forth in this Declaration, without the prior written consent of the ARB. All other outside decorations and ornaments, whether affixed to the Dwelling Unit or placed elsewhere on the Lot, are prohibited, unless approved by the ARB. This restriction shall not apply to seasonal decorations from two weeks prior to the holiday to which the decorations are related until one week after such holiday, and to a single flagpole which may not, however, extend higher than the roof of the Dwelling Unit, and must be affixed to the Dwelling Unit.

Window Tinting: No reflective foil or other material, or tinted glass shall be permitted on any windows except for tinted glass approved by the ARB.

Unit Air Conditioners: No air conditioning units may be mounted through windows or

walls unless the location, method of installation and appearance has been approved in writing by the **ARB**. It is the intention of this provision to authorize the ARB to approve or disapprove such air conditioning units in its sole discretion, on purely aesthetic grounds or any other grounds. All other air conditioning units shall be located in the Rear Yard unless a different location is approved by the ARB, and shall be effectively screened by plant matter or opaque fencing approved by the ARB.

Construction on Lots: All exterior construction and landscaping of any Dwelling Unit shall be completed before any person may occupy the same. All construction on any Dwelling Unit shall be completed within twelve (12) months from the issuance of the building permit for that Dwelling Unit. All construction on any Lot shall be at that Lot Owner's risk and that Lot Owner shall be responsible for any damage to Common Areas, utilities, public rights-of-way, sidewalks, or curbing resulting from construction on such Lot. Repairs of construction damage must be made within thirty (30) days.

Subdivision - Multi-Units.

Only one (1) Dwelling Unit may be erected on each Lot although except:

- a. An additional attached or detached garage apartment or guest house (compatible in design, materials and appearance with the primary Dwelling Unit) may be permitted by the ARB; and
- b. A barn or other detached out-building as approved by the ARB.
- c. No Lot may be subdivided, except to increase the size of an Owner's property upon which no more than one (1) Dwelling Unit is constructed.

Landscaping

Grassed Areas and Yards. If required by the County, all landscaping shall incorporate the principals of the Florida Yards and Neighbors Program. All Lots shall, upon completion of a Dwelling Unit and prior to any person occupying the Dwelling Unit, be fully landscaped and grassed in accordance with plans submitted to, and approved by, the ARB. To the extent required by the ARB, the Front Yard shall be sodded with grass approved by the ARB and irrigated with an irrigation system approved by the ARB. The Owner shall maintain all shrubbery, grass, trees and other landscaping installed on their Lot in a neat, clean, orderly and healthy condition. Each Owner shall maintain all property lines between the Owner's Lot and the pavement of any paved street, including culverts. The lawn shall be comprised of grass only and shall be cut and edged next to all concrete, asphalt and other non-lawn surfaces. Grassed areas will be

regularly mowed, and will be appropriately watered, fertilized, and treated for grass destroying pests, including insects, fungus, weeds, and disease in a manner designed to insure healthy growth, color and appearance. Decorative rock yards, paved yards, or yards in which the principal ground cover is other than grass are specifically prohibited. No artificial shrubbery, trees, or other artificial vegetation or landscaping, or potted shrubbery, trees, or vegetation shall be permitted outside the Dwelling Unit, except that live shrubbery, trees, or other vegetation in uniformly designed and attractive pots may be displayed on porches, patios, or at the entrance areas of a Dwelling Unit. All shrubbery shall be regularly trimmed, fertilized, watered, and treated for pests as needed to assure the health and attractive condition of the shrubbery. All non-lawn areas shall be kept free from excessive weeds or unsightly undergrowth or brush. The Owner's maintenance and care obligations as set forth herein shall apply to all portions of the Lot including any easements located on or adjacent thereto, including front, side, and rear road and utility easements.

Tree Removal Restrictions. No living tree larger than eight inches (8") in diameter at two feet (2') above ground level, shall be cut down, destroyed or removed from the Property without the prior approval of the ARB.